

**UNITED STATES OF AMERICA
BEFORE THE NATIONAL LABOR RELATIONS BOARD**

STARBUCKS CORPORATION

and

**WORKERS UNITED a/w SERVICE
EMPLOYEES INTERNATIONAL UNION**

**Cases 19-CA-294708
28-CA-289622
28-CA-291044
28-CA-292106
28-CA-292326
28-CA-294010
28-CA-296535
28-CA-296858
28-CA-297257
28-CA-307797
28-CA-313214
28-CA-313426
28-CA-313432
28-CA-313458**

**COUNSEL FOR THE GENERAL COUNSEL'S EXCEPTIONS
TO THE ADMINISTRATIVE LAW JUDGE'S DECISION**

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Pursuant to Section 102.46 of the Rules and Regulations of the National Labor Relations Board (the Board), the General Counsel files the following exceptions to the decision of Administrative Law Judge Eleanor Laws (the ALJ) in *Starbucks Corporation*, JD(SF)–17–24 (Jun. 7, 2024) (ALJD):

1. To the ALJ’s failure to find that maintenance by Starbucks Corporation (Respondent) of the Prohibition Against Harassment rule in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the National Labor Relations Act (the Act). (Complaint ¶¶5(a)(2) & 12; ALJD 11:27-12:19)
2. To the ALJ’s failure to find that Respondent’s maintenance of the Bullying rule in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act. (Complaint ¶¶5(a)(3) & 12; ALJD 12:21-32)
3. To the ALJ’s finding that the Shirts, Sweaters, and Jackets rule in Respondent’s Partner Guide is overly-broad “to the extent that it prohibits union insignia that is hidden beneath the employee’s uniform, and to the extent that it treats a manufacturer’s logo more favorably than comparably sized union insignia.” (Complaint ¶¶5(a)(6) & 12; ALJD 18:14-17)
4. To the ALJ’s failure to find that Respondent’s maintenance of the Personal Mobile Devices rule in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act (Complaint ¶¶5(a)(8) & 12; ALJD 19:4-17)
5. To the ALJ’s failure to find that Respondent’s maintenance of the Solicitation/Distribution of Notices rule in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act (Complaint ¶¶5(a)(12) & 12; ALJD 22:26-23:2)

6. To the ALJ's failure to find that Respondent's maintenance of the Acceptable Use of Starbucks Electronic Communications Systems rule in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act. (Complaint ¶¶5(a)(14) & 12; ALJD 24:29-33)

7. To the ALJ's failure to find that Respondent's maintenance of the Mobile Computing rule in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act. (Complaint ¶¶5(a)(18) & 12; ALJD 27:22-25)

8. To the ALJ's failure to find that Respondent's maintenance of the restriction on "harassment" in the Corrective Action rule in its Partner Guide constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act. (Complaint ¶¶5(a)(22) & (12); ALJD 29:31-24)

9. To the ALJ's failure to find that Respondent's maintenance of the restriction on "verbal abuse" in the How We Treat One Another rule in its Standards of Business Conduct constituted an unfair labor practice within the meaning of Section 8(a)(1) of the Act. (Complaint ¶¶5(g)(1) & 12; ALJD 35:32-33)

10. To the ALJ's failure to order expungement of discipline, retraction of legal enforcement actions, and a make-whole remedy for all employees affected by enforcement of Respondent's overly-broad and discriminatory rules if the targeted conduct touches upon concerns animating Section 7 of the Act.

11. To the ALJ's failure to specifically find that, by issuing a Written Warning to its employee Laila Dalton (Dalton) on January 25, 2022, pursuant to the How We Communicate rule in its Partner Guide, Respondent applied the How We Communicate rule to restrict its employees' protected concerted activities, in violation of Section 8(a)(1) of the Act. (Complaint ¶¶7(b), 7(h), 7(j), & 12; ALJD 71:14-72:35)

12. To the ALJ's failure to find that Respondent issued a Written Warning to its employee Dalton on January 25, 2022, pursuant to the overly-broad How We Communicate rule in its Partner Guide, and to discourage employees from engaging in protected concerted activities, in violation of Section 8(a)(1) of the Act. (Complaint ¶¶7(b), 7(h), & 12; ALJD 71:14-72:35)

13. To the ALJ's failure to find that Respondent issued a Documented Coaching to its employee Dalton on March 12, 2022, because Dalton engaged in protected concerted activities, formed, joined, and assisted Workers United a/w UNITE HERE International Union (the Union), and gave testimony to the Board in the form of affidavits, was named in an unfair labor practice charge, and/or cooperated in a Board investigation, in violation of Sections 8(a)(1), (3), and (4) of the Act. (Complaint ¶¶7(d), 7(l), 8(j), 9, 12, 13, & 14; ALJD 76:7-22)

14. To the ALJ's finding that District Manager Megan Diller had reason to pass along the complaint of Respondent's employee Brian Malley (Malley) that Respondent's employee Dalton confronted Malley about a union posting being removed, proceeded to talk loudly and tell everyone Malley was "corporate" and only speaks "corporate," and then repeatedly and loudly told Malley she did not want to talk about unionization. (Complaint ¶¶7(e), 7(l), 8(j), 9, 12, 13, & 14; ALJD 77:10-13)

15. To the ALJ's failure to find that Respondent discharged its employee Dalton on April 4, 2022, because Dalton engaged in protected concerted activities, formed, joined, and assisted the Union, and gave testimony to the Board in the form of affidavits, was named in an unfair labor practice charge, and/or cooperated in a Board investigation, in violation of Sections 8(a)(1), (3), and (4) of the Act. (Complaint ¶¶ 7(g), 7(l), 8(j), 9, 12, 13, & 14; ALJD 78:8-79:34)

16. To the ALJ's failure to find that Respondent applied the Video Recording, Audio Recording and Photography rule in its Partner Guide to restrict its employees' protected concerted activities by discharging its employee Dalton on April 4, 2022, in violation of Section 8(a)(1) of the Act.

17. To the ALJ's failure to find that Respondent discharged its employee Dalton on April 4, 2022, pursuant to the overly-broad Video Recording, Audio Recording and Photography rule in its Partner Guide, and to discourage employees from engaging in protected concerted activities, in violation of Section 8(a)(1) of the Act. (ALJD 79:fn. 113)

18. To the ALJ's expression of concern about application of the framework of *Guess?, Inc.*, 339 NLRB 432 (2003), to discovery requests. (Complaint ¶¶ 6(n) & 12; ALJD 86:fn.126)

19. To the ALJ's failure to find that, about June 6, 2022, Respondent, by its outside counsel, through discovery dispute procedures over subpoenas issued to its employees Dalton, Bill Whitmire (Whitmire), Alyssa Sanchez (Sanchez), and Tyler Gillette (Gillette), threatened employees with court intervention if they failed to produce their oral and written communications with the Union, thereby interfering with, restraining, and coercing employees in the exercise of their rights under Section 7 of the Act and discriminating against its employees because they gave testimony to the Board in the form of affidavits, were named in an unfair labor

practice charge, and/or cooperated in a Board investigation, in violation of Sections 8(a)(1) and (4) of the Act. (Complaint ¶¶6(q), 9, 12, & 14: ALJD 86:30-87:7)

20. To the ALJ's failure to find that, about May 11, 2022, Respondent, by its outside counsel, through subpoenas issued to its employees Dalton, Whitmire, Sanchez, and Gillette, discriminated against its employees because they gave testimony to the Board in the form of affidavits, were named in an unfair labor practice charge, and/or cooperated in a Board investigation, in violation of Sections 8(a)(1) and (4) of the Act. (Complaint ¶¶6(n), 9, 12, & 14: ALJD 87:9-19)

21. To the ALJ's failure to find that, about March 3, 2022, Respondent, by Store Manager Keisha Johnson (Johnson), by stating that Johnson was looking into installing bulletproof glass at the store and signing the store up for Respondent's Lyft program, promised employees benefits in response to their union activities, in violation of Section 8(a)(1) of the Act. (Complaint ¶¶6(h)(2) & 12; ALJD 94:42-95:11)

22. To the ALJ's failure to find that, about June 2, 2022, Respondent discharged its employee Milyanna Romero without prior notice to the Union, and/or without affording the Union an opportunity to bargain with Respondent with respect to this conduct and/or the effects of this conduct, and/or without first bargaining with the Union to an overall good-faith impasse for a collective-bargaining agreement, in violation of Section 8(a)(5) of the Act. (Complaint ¶¶8(i), 10(d), & 15; ALJD 100:11-21)

23. To the ALJ's failure to find that Respondent's employee Brittney Schmitt (Schmitt) engaged in protected concerted activity when, in the course of consoling another employee after a customer who had made disturbing past comments about "Nazi science" and other subjects was belligerent toward her, they referred to the customer as a "fucking bitch." (Complaint ¶¶7(m); ALJD 111:15-19)

24. To the ALJ's failure to find that Respondent discharged its employee Schmitt pursuant to the overly-broad How We Communicate rule in its Partner Guide, and to discourage employees from engaging in protected concerted activities, in violation of Section 8(a)(1) of the Act. (Complaint ¶¶6(p) & 12; ALJD 110:16-111:2)

25. To the ALJ's finding that Respondent's employee Schmitt's asking, "Are you going to fucking fire me?" and saying, "That's shitty," to protest Respondent's enforcement of its overly-broad dress code did not retain the protection of the Act. (ALJD 111:34-112:18)

26. To the ALJ's failure to find that Respondent discharged its employee Schmitt for their actions during the course of union and protected concerted activity, in violation of Section 8(a)(1) and (3) of the Act. (Complaint ¶¶7(n), 7(p), 8(j), 12, & 13; ALJD 111:4-112:18)

27. To the ALJ's failure to find that Respondent applied the How We Communicate rule and Mission and Values rule in its Partner Guide to restrict its employees' protected concerted activities by discharging its employee Schmitt, in violation of Section 8(a)(1) of the Act. (Complaint ¶¶7(n), 7(o), & 12; ALJD 112:18-113:24)

28. To the ALJ's failure to find that Respondent discharged its employee Schmitt for engaging in union and protected concerted activity, in violation of Section 8(a)(1) and (3) of the Act. (Complaint ¶¶7(n), 7(p), 8(j), 12, & 13; ALJD 113:28-40)

29. To the ALJ's finding that Respondent met its burden of establishing that Schmitt would have been discharged even absent their union and protected concerted activities. (Complaint ¶¶7(n), 7(p), 8(j), 12, & 13; ALJD 113:31-34)

30. To the ALJ's failure to find that a combined notice and explanation of rights posting and reading is appropriate for Respondent's Scottsdale & Mayo store, Respondent's Indian School & 107th store, and Respondent's Southern & McClintock store. (ALJD 118:23-120:17; 118:29-33)

31. To the ALJ's typographical error concerning Respondent's implying Starbucks could make unilateral changes regardless of whether its employees were represented by a collective-bargaining "representative," in violation of Section 8(a)(1) of the Act. (ALJD 115:14-26; 121:36-37)

32. To any finding that the remedies for Respondent's unfair labor practices throughout the United States and its Territories is limited to Respondent's facilities in Phoenix, Arizona, and Tempe, Arizona. (ALJD 120:21)

33. To the ALJ's typographical error concerning Respondent's obligation to rescind the overly-broad Community Board Standards in "its" Store Operations Manual and the overly-broad update to the Community Board Standards in the Weekly Update. (ALJD 123:11-13)

34. To the ALJ's failure to order a make-whole remedy, including, but not limited to, reinstatement, backpay, interest, compensation for direct or foreseeable pecuniary harm, and expungement, to compensate for the discharge of its employee Dalton.

35. To the ALJ's failure to order a make-whole remedy, including, but not limited to, reinstatement, backpay, interest, compensation for direct or foreseeable pecuniary harm, and expungement, to compensate for the discharge of its employee Schmitt.

Dated at Phoenix, Arizona, this 5th day of August, 2024.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that the foregoing General Counsel's Exceptions to the Administrative Law Judge's decision in *Starbucks Corporation*, Cases 28-CA-289622, *et al.*, were e-filed and served on this 5th day of August, 2024, as follows:

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